

DPSP provide a roadmap for a welfare state, but their non-justiciable nature often limits their implementation. In this context, critically examine the conflict between DPSPs and FRs, citing landmark judgements and constitutional amendments.

DPSPs are enshrined in the constitution in Part IV from article 37 to 51. They are considered as positive in nature and they allow state to establish economic and social democracy for a welfare state.

Although DPSP provide a roadmap for welfare state but they had given non-justiciable nature due to —

- ① Newly independent India.
- ② Vast Diversity → ~~The~~ Justiciable nature of DPSP may hampered the religious and cultural aspects of country like India.

③ Financial resource → If DPSPs like providing maternity benefits and free legal were given justiciability in nature, then it would ~~be~~ have been financial burden on government.

④ ^{over} Burdening on courts → Cases seeking justiciability of DPSPs may lead to overburdening on judiciary.

The implementation of DPSPs led to the birth of many judgements and amendments with conflicts between DPSP and FRs.

① Champak Dorairajan case

SC held that a law seeking to implement DPSP cannot violate any FRs. In order to implement DPSP, constitutional amendment in FR should be required.

② Golaknath case

In this case, SC declared FRs as sacrosanct, which cannot be get amended. Thus, the implementation of DPSP

was overruled and DPSPs ~~was~~^{were} considered subordinate to FR.

III) 24th and 25th amendment act

24th amendment act, 1971 allowed Parliament to amend FRs. 25th amendment act further added article 31C and ruled that any law which seek to implement article 39(b) and 39(c) cannot be declared as void on the ground of violation of article 14, 19

and 31. Thus it provided co-equal phase between DPSP & FR.

IV) 42nd amendment act

42nd a.a. amended article 31C and provided that any law which seek to implement any DPSP cannot be challenged on the ground of violation of article 14, 19 and 31. Therefore, FRs were given subordinate position

⑤ Minerva Mills case

SC restored the original provision of article 31C and declared that FRs and DPSPs are complementary and supplementary to each other and harmony between FRs and DPSPs ^{forms the} ~~provide~~ ^a basic structure of the constitution.

Thus, FRs which are guaranteed cannot be isolated from DPSPs which are ~~governmental~~ ~~in nature~~ fundamental in governance.

~~DRB~~ Dr. BR Ambedkar also described DPSPs and FRs as the philosophy of the constitution and is the soul of the constitution.